

IC 24-4.7 **ARTICLE 4.7. TELEPHONE SOLICITATION OF CONSUMERS**

Ch. 1.	General Provisions
Ch. 2.	Definitions
Ch. 3.	Duties of the Division
Ch. 4.	Telephone Solicitations
Ch. 5.	Civil Remedies

IC 24-4.7-1 **Chapter 1. General Provisions**

24-4.7-1-1	Application
24-4.7-1-2	Compliance with other law

IC 24-4.7-1-1 **Application**

Sec. 1. This article does not apply to any of the following:

- (1) A telephone call made in response to an express request of the person called.
- (2) A telephone call made primarily in connection with an existing debt or contract for which payment or performance has not been completed at the time of the call.
- (3) A telephone call made on behalf of a charitable organization that is exempt from federal income taxation under Section 501 of the Internal Revenue Code, but only if all of the following apply:
 - (A) The telephone call is made by a volunteer or an employee of the charitable organization.
 - (B) The telephone solicitor who makes the telephone call immediately discloses all of the following information upon making contact with the consumer:
 - (i) The solicitor's true first and last name.
 - (ii) The name, address, and telephone number of the charitable organization.
- (4) A telephone call made by an individual licensed under IC 25-34.1 if:
 - (A) the sale of goods or services is not completed; and
 - (B) the payment or authorization of payment is not required; until after a face to face sales presentation by the seller.
- (5) A telephone call made by an individual licensed under IC 27-1-15.6 or IC 27-1-15.8 when the individual is soliciting an application for insurance or negotiating a policy of insurance on behalf of an insurer (as defined in IC 27-1-2-3).
- (6) A telephone call soliciting the sale of a newspaper of general circulation, but only if the telephone call is made by a volunteer or an employee of the newspaper.
- (7) Any telephone call made to a consumer by a communications service provider (as defined in IC 8-1-32.5-4) that:
 - (A) offers broadband Internet service; and
 - (B) has an established business relationship (as defined in 47 CFR 64.1200) with the consumer.
- (8) Any telephone call made to a consumer by:
 - (A) a financial institution organized or reorganized under the laws of any state or the United States; or
 - (B) a person licensed by the department of financial institutions under IC 37-1, IC 37-2, or 750 IAC 9; that has an established business relationship (as defined in 47 CFR 64.1200) with the consumer.

As added by P.L.189-2001, SEC.1. Amended by P.L.97-2004, SEC.90; P.L.242-2019, SEC.1; P.L.115-2026, SEC.25.

IC 24-4.7-1-2 **Compliance with other law**

Sec. 2. This article does not relieve a person from complying with any other applicable

law.

As added by P.L.189-2001, SEC.1.